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LINE 2

22-CIV-00303

AETNA INC VS GILEAD SCIENCES, INC

AETNA INC
GILEAD SCIENCES, INC

DANIEL A. SASSE
MICHAEL J SHIPLEY

PLAINTIFF AETNA INC.'S MOTION TO FILE DOCUMENTS UNDER SEAL

TENTATIVE RULING:

In this case, plaintiff Aetna Inc. (Aetna) sues defendants Gilead Sciences, Inc. and related Gilead entities (collectively Gilead) for alleged Cartwright violations.

The court has already granted Aetna's motion to seal Exhibit A to the second amended complaint.

The parties bring four motions to seal related to upcoming motions, three motions were filed on July 21, 2026 and one on August 4, 2026. Because the court anticipates that these documents will be used in other pre-trial motions, the court makes these findings as to the use of these documents in all pretrial documents so that the parties do not need to bring successive motions to seal these documents. This order does not extend to the trial and the court will discuss what documents, if any, will be sealed at trial at a pretrial conference.

Public access to court proceedings is paramount. (Code Civ. Proc., § 124; *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1197 (*NBC Subsidiary*)). “[O]pen trials serve to demonstrate that justice is meted out fairly, thereby promoting public confidence in such governmental proceedings [citation]; ‘[m]ore importantly,’ open trials provide a means, ‘akin in purpose to the other checks and balances that infuse our system of government,’ by which citizens scrutinize and ‘check’ the use and possible abuse of judicial power [citation]; and finally, ‘with some limitations’ [citation], open trials serve to enhance the truth-finding function of the proceeding [citation].” (*NBC Subsidiary*, at pp. 1201–1202, quoting Justice Brennan’s concurring opinion in *Richmond Newspapers, Inc. v. Virginia* (1980) 448 U.S. 555 [public access to criminal trial]; see *NBC Subsidiary*, at p. 1211 [concluding same principles apply to civil trials].) “ ‘Popular attendance at trials, in sum, substantially furthers the particular public purposes of that critical judicial proceeding. In that sense, public access is an indispensable element of the trial process itself....’ [Citation.]” (*NBC Subsidiary*, at p. 1202.) Court records are presumed to be open. (Cal. Rules of Court, rule 2.550(c).)

Public access, however, is not absolute. (*NBC Subsidiary, supra*, 20 Cal.4th at p. 1217.) Certain types of information are confidential, and the public is not entitled to access that information. (See e.g. *Overstock.com, Inc. v. Goldman Sachs Grp., Inc.* (2014) 231 Cal.App.4th 471, 503.) To balance the competing policies, in order to prohibit the public from seeing certain documents in the court filed, the court must expressly find:

- (1) There exists an overriding interest that overcomes the right of public access to the records;
- (2) The overriding interest supports sealing the records;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the records are not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

(Cal. Rules of Court, rule 2.550.)

Aetna seeks to seal the following documents: Exhibits C through E to the Declaration of Kari G. Ferver in Support of Plaintiff Aetna Inc.'s Motion to Exclude Certain Opinions of Defendants' Expert, Anupam B. Jena, M.D., Ph.D. on the basis that they contain highly confidential and commercially sensitive information, including proprietary material and non-public trade secrets of Aetna. Aetna's interest in avoiding the competitive harm that would be associated with disclosure of this information overrides the public interest in gaining access to such document. (Aetna's notice of motion filed July 21, 2026.)

In its July 21, 2026 filed motions, Gilead seeks to seal portions of Gilead's Pretrial Motion No. 4 to Exclude Expert Testimony and Argument Relating to TAF and Exhibits 52, 58, 63–65, 67, and 78–79 on the basis that they contain confidential business and settlement information. (Gilead's unopposed application for leave to file under seal dated July 21, 2026.) Gilead also seeks to seal portions of Gilead's motion to determine applicable law and Exhibits 1 and 2 for the same reason. (Gilead's unopposed application for leave to file under seal filed July 21, 2026.)

In its August 4, 2026 motion, Gilead seeks to maintain the following documents under seal: Exhibit A to the Declaration of Kari G. Ferver in Support of Plaintiff Aetna Inc.'s ("Aetna's") Motion to Exclude Certain Opinions of Defendants' Expert, Anupam B. Jena, M.D., Ph.D. ("Jena Motion") and (ii) Exhibit B to the Declaration of Kari G. Ferver in Support of Aetna's Motion in Limine No. 1 to Exclude Evidence of Non-Party Teva's Subjective Perceptions ("Teva Motion," and together with Jena Motion, the "Motions"). (Gilead's unopposed motion for leave to maintain documents under seal filed August 4, 2026.) There are fourteen words (seven passing references) that Gilead seeks to seal. It seeks to seal information regarding financial information (damages and royalty) which are not specifically mentioned in plaintiff's summary judgment motion.

The court has reviewed the documents which the parties request to be sealed. They are the quintessential documents that the law allows to be sealed—confidential business or financial information that would not be public but for the lawsuit and the rules governing discovery. The depositions contain these sensitive information. The "settlement documents" are communications regarding confidential and commercially sensitive mental impressions of a settlement agreement and strategies, once again quintessential documents entitled to be sealed.

After a review of the documents, the court expressly finds:

(1) There exists an overriding interest that overcomes the right of public access to the records, i.e., confidential and sensitive business information of all parties and mental impressions and strategies of a confidential nature;

(2) The overriding interest supports sealing the records to protect the parties' interest;

(3) A substantial probability exists that the overriding interest will be prejudiced if the records are not sealed;

(4) The proposed sealing is narrowly tailored in that only the confidential and sensitive information is redacted; and

(5) No less restrictive means exist to achieve the overriding interest.

THE CLERK OF THE COURT IS THUS ORDERED TO SEAL THESE DOCUMENTS. The parties are to make sure that there is a public version of each of the documents which is in the court file.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for the party bring the motion shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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LINE 3

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DEFENDANTS' UNOPPOSED APPLICATION FOR LEAVE TO FILE UNDER SEAL

DEFENDANTS' UNOPPOSED APPLICATION FOR LEAVE TO FILE UNDER SEAL

TENTATIVE RULING:

See tentative ruling for line 2, which tentative ruling is incorporated by reference as if fully set forth herein.
